

Sanjeev Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 May 2013 · Writ - C No. 22712 of 2013 · **Writ disposed; Clause 4.4 application to be considered within 15 days.**

HEADNOTE

An occupier whose owner has had supply disconnected and refuses consent for a new connection may apply for an independent connection under Clause 4.4 of the Electricity Supply Code, 2005. The writ was disposed with a direction that a fresh Clause 4.4 application, if made, be considered and decided within 15 days.

FACTUAL SUMMARY

The petitioner claimed to be in possession of a house belonging to respondent no. 5. Electricity to the premises was disconnected on the owner's instructions, and the owner refused to let the petitioner take a new connection. The petitioner had already represented to the distribution licensee seeking supply. He then filed this writ petition seeking electricity despite the owner's refusal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

independent connection by occupier without owner consent

HOLDING

A lessee, tenant or occupier who cannot obtain the owner's consent may apply for an independent electricity connection under Clause 4.4 of the Electricity Supply Code, 2005. If the petitioner files a fresh application under that clause, the licensee shall consider it and decide within 15 days of submission. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ENTITLEMENT TO A NEW CONNECTION, AND VALIDITY OF THE DISCONNECTION AT THE OWNER'S INSTANCE

The Court only pointed the petitioner to Clause 4.4 and directed consideration of a fresh application. ¶ 3-4